

MISSISSAUGAS OF SCUGOG ISLAND

FIRST NATION



MISSISSAUGAS OF SCUGOG ISLAND FIRST NATION

REQUEST FOR PROPOSALS # EED - 001

IMPORTANT DATES

Request for Proposals Issued: January 16, 2023
Proponent's Deadline for Questions: February 6, 2023
Deadline for Issuing Addenda: January 27, 2023
Proposal Submission Deadline: 2:00:00 pm on February 8, 2023

All times specified in this RFP timetable are local times in Port Perry, Ontario, Canada.
Register with Josh McIlmoyle @ jmcilmoyle@scugogfirstnation.com to be notified of any
Addenda's

**MSIFN SHALL NOT BE LEGALLY OBLIGATED TO ANY PROPONENT UNTIL A WRITTEN
AGREEMENT HAS BEEN EXECUTED**

TABLE OF CONTENTS

1. INTRODUCTION	1
1.1 Invitation to Proponents.....	1
1.2 Type of Contract for Services.....	1
1.3 Compliance with Applicable Laws.....	1
1.4 RFP Documentation.....	1
1.5 MSIFN AND MSIFN’S PROCUREMENT POLICIES	1
2. DEFINITIONS	2
3. THE SERVICES	2
3.1 Background.....	2
3.2 Purpose and Objectives.....	2
3.3 Scope of Work	3
3.4 Remuneration and Agreement	4
4. EVALUATION OF PROPOSALS	4
4.1 Stages of Proposal Evaluation	4
4.2 Rated Criteria.....	4
5. TERMS AND CONDITIONS OF THE RFP PROCESS.....	6
5.1 General Information and Instructions.....	6
5.2 MSIFN Contact.....	6
5.3 Communication After Issuance of RFP.....	7
5.4 Submission of Proposals.....	7
5.5 Execution Of Agreement	9
5.6 Prohibited Communications & Confidential Information	9
5.7 Rights of MSIFN	10
5.8 Governing Law of RFP Process.....	11

REQUEST FOR PROPOSAL

1. INTRODUCTION

1.1 Invitation to Proponents

This Request for Proposals (“**RFP**”) is an invitation to prospective proponents (“Proponents”) to submit proposals (“Proposals”) that achieve the best overall value to Mississaugas of Scugog Island First Nation (“MSIFN”).

1.2 Type of Contract for Services

The selected Proponent will be required to enter into an agreement (“**Agreement**”) with MSIFN for the provision of the Services. The Term of the Agreement is to be for a period of 2 months, commencing upon the execution of the Agreement.

1.3 Compliance with Applicable Laws

A condition of the Agreement is the requirement that the successful Proponent/Supplier comply with all applicable laws of Ontario and Canada, including the Occupational Health and Safety Act (Ontario), the Ontario Human Rights Code, and the privacy statutes applicable in the province of Ontario. For certainty, MSIFN is generally under no legal obligation to comply with the Ontario Broader Public Sector Procurement Directive or with any of procurement chapters of the trade agreements, including the Canadian Free Trade Agreement. For greater certainty, no Contract A (or bidding contract) legal obligations shall arise from the issuing of this RFP and MSIFN shall under no circumstances become legally obligated to any Proponent until the Agreement has been executed with the successful Proponent.

1.4 RFP Documentation

This RFP consists of the following documents:

- This RFP and any appendix

1.5 MSIFN AND MSIFN’S PROCUREMENT POLICIES

MSIFN is located on the north end of Scugog Island, in Lake Scugog, inside Durham Region’s northern boundary with the City of Kawartha Lakes. Permanent roads connect the MSIFN to Port Perry, 10 kms to the south, which is 25 kms from Oshawa via Hwy 2, 80 kms from Toronto via Hwy 407, and 45 kms from Peterborough via Hwy 7A. GO Bus service links Port Perry with the Oshawa GO Train station to provide regular public transit to the Greater Toronto Area (GTA) and Toronto’s Pearson Airport.

The provisions of MSIFN’s Procurement Policies shall apply to this RFP. In the event of any inconsistency or conflict between the provisions of this RFP and the provisions of MSIFN’s Procurement Policies, the latter shall govern.

2. DEFINITIONS

Unless otherwise specified in this RFP, capitalized words and phrases have their prescribed meaning set out in the Agreement.

“**Annual**” means twelve months.

“**Days**” means Business Days unless the term calendar days is specifically used.

“**Proposal**” means all the documentation submitted by the Proponent in response to this RFP, which has been accepted by MSIFN, in whole or in part.

“**Services**” mean the goods and/or services to be provided by the Supplier to MSIFN.

“**Supplier**” means the successful Proponent that has signed the Agreement.

3. THE SERVICES

3.1 Background

MSIFN has a history of supporting its member entrepreneurs through one-on-one support from the EDO (Economic Development Officer) or via business planning workshops. We are hoping to support not only new business ventures, but also existing small businesses that would benefit from these planning resources.

3.2 Purpose and Objectives

This RFP will provide proponents the opportunity to provide a proposal in relation to the proposed scope of work outlined below. The intent is to provide our members with a comprehensive course as it relates to standard business plans that would be utilized to secure outside investment or provide a pathway to success for their business ventures. Members in the program may already be operating a business or exploring the possibility of opening a business in the near future. The program should be generalized in the sense that any small business would derive value from the program, regardless of the stage of development. For example, when exploring business ideas for new entrepreneurs, there should be an offset perspective for existing business owners along the lines of “defining your niche” as one example.

The expected outcome is that members will walk away with a comprehensive business plan that will allow them to clearly see the next steps and priorities in developing their new or existing opportunity. In the interest of time and resources, if a member needs to secure external funding/investment, they may have to invest additional time and resources into the further development and exploration of their business plans. MSIFN provides support through their Employment and Economic Development Officer, to assist with further development and resources.

3.3 Scope of Work

We are looking for the virtual delivery of a business planning workshop that will provide existing and aspiring indigenous entrepreneurs with the tools and resources that will be required to successfully develop a comprehensive business plan. Individuals should walk away with the understanding of the following common areas of focus:

1. Mission/Vision/Values
2. Product Concept
3. Target Market/Marketing Strategy
4. Competition Analysis
5. Operational Requirements/Growth Strategy
6. Financial Planning
7. SWOT Analysis
8. Government Requirements and Industry Guiding Policy
9. Implementation Strategy

The successful proponent will provide the following in relation to the delivery of program:

1. Access to a virtual delivery platform.
2. An experienced instructor.
3. Detailed work plan that outlines key stages of the program outcomes.
4. PDF file of all relevant course material to be shared electronically and in hard copy if requested by participants (MSIFN to mail out hard copies in advance of workshop).
5. Post-Program support up to 3 weeks to answer questions from participants.

Details to include in your proposal:

1. Timeline and availability to deliver the respective program in relation to proposed delivery dates.
2. Example or template of proposed business plan.
3. Instructor profile, outlining credentials/experience with business planning.
4. Detailed work plan that outlines key stages of the program outcomes.

5. What about your program and approach ensures motivation for participants to not only complete the program, but also succeed in their efforts to start the business.

3.4 Remuneration and Agreement

The successful Proponent's remuneration will be based on the amount agreed to for the Services. The Supplier will not undertake any work that is beyond the scope of work for the Services, without the written authorization of MSIFN.

4. EVALUATION OF PROPOSALS

The evaluation of Proposals will be conducted by MSIFN in three phases, on the basis of the members of the evaluation committee ("**Evaluation Committee**") arriving at a consensus. To succeed, a Proposal must meet the requirements of each phase.

4.1 Stages of Proposal Evaluation

The evaluation of Proposals will be conducted in three stages. In stage I, the Evaluation Committee will verify that the Proponent has submitted an executed Form of Offer, attached as Appendix A to this RFP. Submission of the Form of Offer is a mandatory requirement. Proposals that do not meet this requirement will be deemed non-compliant and will not be considered further.

In stage II, the Evaluation Committee will rate each eligible Proposal on the basis of the Rated Criteria (except Pricing), which will then be ranked, with the three (3) highest-ranking Proposals selected to proceed to stage III.

In stage III, the Evaluation Committee will score the Pricing of the eligible Proposals. The totals from stages II and III will be added to arrive at a final total score for each Proposal. The highest-ranked Proposal representing best overall value to MSIFN will be recommended for selection by the Evaluation Committee to MSIFN. The Rated Criteria to be used by the Evaluation Committee in the scoring of eligible Proposals are as follows:

Rated Criteria (excluding Pricing)	85 points available
Pricing	15 points available
Total	100 points

MSIFN may identify the top-ranked Proponent on the basis of its Proposal, without negotiations. Proponents are therefore encouraged to submit their best Proposal. MSIFN may, however, enter into negotiations with the top-ranked Proponent. In the event that MSIFN and such Proponent fail to successfully conclude an Agreement in a timely manner, MSIFN may terminate the negotiations and invite the next highest-ranked Proponent to finalize an agreement with MSIFN.

4.2 Rated Criteria

Each Proposal will be evaluated on its response to the Rated Criteria set out below:

Rated Criteria	Weight	Minimum Score
Information: Provide the name, size, location and description of the Proponent firm. Proponents that have been in business for at least 10 years and that include at least 10 professionals will receive more points.	5	3
Corporate capabilities and experience: Describe recent similar projects by the Proponent. Proponents that demonstrate that they have successfully worked on similar, or more complex, projects, will receive more points.	5	3
Understanding of project objectives: Proponents whose Proposal demonstrates a thorough understanding of the project will receive more points.	10	7
Work program, innovation: Proponents that submit a creative, innovative work program that demonstrates the various ways in which the Proponent proposes to add value to the project will receive more points.	20	15
Schedule: Proponents that can demonstrate that they can commit to the project schedule and, where appropriate, can generate scheduling efficiencies will receive more points.	10	6
Deliverables: - Virtual delivery: Proponent provides video conferencing platform. - PDF package of all relevant course material to be shared both electronically and in hardcopy to participants. - Interactive workshop that clearly identifies key elements of a business plan and how to strategically find and organize the relevant information - On-going support throughout the delivery of the program - One-on-One post-program support for up to 3 weeks to assist members with any outstanding questions. - References from hiring organizations or participants	10	6
Project team: Describe the key proposed project personnel, their expertise and proposed responsibilities, including the	15	10

Rated Criteria	Weight	Minimum Score
expertise and responsibilities of any proposed sub-consultant. Proponents that can demonstrate significant team expertise in the areas relevant to the project will receive more points.		
Oral Presentation (If applicable)	5	3
References	5	3
Pricing: Provide an estimate of the number of hours, fees and expenses associated with each phase of the project and disbursements for completing the project.	15	10
TOTAL	100	67

5. TERMS AND CONDITIONS OF THE RFP PROCESS

5.1 General Information and Instructions

5.1.1 RFP Tentative Timetable

Issue Date of RFP	January 16, 2023
Proponent's Deadline for Questions	February 6, 2023
Deadline for Issuing Addenda	January 27, 2023
Proposal Submission Deadline	February 8, 2023, 2PM
Oral Presentation (If applicable)	N/A
Anticipated Agreement Start Date	March 2023

5.1.2 Proponents to Follow Instructions

Proponents should structure their Proposals in accordance with the instructions in this RFP.

5.2 MSIFN Contact

All communications regarding any aspect of this RFP must be directed to the MSIFN Contact:

Name:	Josh McIlmoyle
Title:	Employment and Economic Development Officer
Phone #:	905-244-8242 (Cell)
E-mail address:	jmcilmoyle@scugogfirstnation.com

Proponents that fail to comply with the requirement to direct all communications to the MSIFN Contact may be disqualified from the RFP process.

5.3 Communication After Issuance of RFP

5.3.1 Proponents to Review RFP

Proponents shall promptly examine all of the documents comprising this RFP and shall report any errors, omissions or ambiguities to MSIFN Contact, in writing (including by facsimile or electronic mail). Note that MSIFN makes no representation, warranty or guarantee as to the accuracy of the information contained in this RFP or issued by way of addenda. Any data contained in this RFP or provided by way of addenda are estimates only and are for the sole purpose of indicating to Proponents the general size of the work. It is the Proponent's responsibility to avail itself of all the necessary information to prepare a Proposal in response to this RFP.

5.3.2 Proponents may Submit Questions

From the Issue Date of this RFP to the Proponents' Deadline for Questions, Proponents may submit questions for clarification to MSIFN. Such questions shall be submitted to MSIFN Contact. No such communication is to be directed to anyone other than MSIFN Contact. To ensure that all prospective Proponents have all of the relevant information, all responses to questions submitted to MSIFN will be provided to all prospective Proponents, in writing.

MSIFN and its advisors do not make any representation, warranty or guarantee as to the accuracy of the information contained in the RFP or issued by way of addenda. It is the Proponent's responsibility to avail itself of all of the necessary information to prepare a Proposal in response to this RFP.

5.3.3 All New Information to Proponents by way of Addenda

This RFP may only be amended by an addendum in accordance with this section. If MSIFN, for any reason, determines that it is necessary to provide additional information relating to this RFP, such information shall be communicated to all prospective Proponents by way of addenda. Each addendum shall form an integral part of this RFP.

Such addenda may contain important information, including significant changes to this RFP. Proponents are responsible for obtaining all addenda issued by MSIFN and are required, in the attached Form of Offer, to confirm their receipt of any and all addenda to this RFP.

5.3.4 Post-Deadline Addenda and Extension of Proposal Submission Deadline

If any addendum is issued after the Deadline for Issuing Addenda, MSIFN may at its discretion extend the Proposal Submission Deadline for a reasonable amount of time.

5.4 Submission of Proposals

5.4.1 Proposals Submitted Only in Prescribed Manner

Proponents' Proposals should be comprised and formatted as follows:

- (a) Email submission of Proposal. Proponents should include a delivery receipt on the email submission as confirmation of successful Proposal submission. Upon request MSIFN can provide confirmation of receipt. The Proposal receipt will be based on the date and time stamp in MSIFN email system.
- (b) A Proponent shall submit two (2) electronic copies of the submission attachments and schedules:
 - a. One (1) copy of the entire Proposal in PDF Format
 - b. One (1) copy of the entire Proposal in the original format (eg, Word)
 - c. One (1) copy of the Proponent's pricing in PDF format

Proposals submitted in any other manner will be disqualified. Where a discrepancy exists between the files, the PDF format shall prevail.

Proposals must be received by the MSIFN Contract no later than 2:00 pm on the Proposal Submission Deadline, as set out in section 5.1.1.

5.4.2 Proposals Must Be Submitted On Time

Proposals submitted after the Proposal Submission Deadline will be disqualified and will be returned unopened to the Proponent.

5.4.3 Amending or Withdrawing Proposals Prior to Proposal Submission Deadline

At any time prior to the Proposal Submission Deadline, a Proponent may amend or withdraw a submitted Proposal. The right of a Proponent to amend or withdraw a Proposal includes amendments or withdrawals wholly initiated by the Proponent. Any amendment should clearly indicate what part of the Proposal the amendment is intending to replace.

Any amendment or notice of withdrawal must be submitted in the same manner as prescribed in this RFP for the submission of Proposals. Any amendment or notice of withdrawal submitted by any other method will not be accepted.

5.4.4 Status of Proposal after Proposal Submission Deadline

Proposals will not be legally binding but will be evaluated by MSIFN on the basis that Proponents will not add, amend or withdraw any part of their Proposal at any time after the Proposal Submission Deadline. Where MSIFN is unable to rely on the integrity of a Proponent's Proposal, either because the information submitted was inaccurate, incomplete or misleading, that Proponent's Proposal may be disqualified from the competition.

5.4.5 MSIFN May Seek Clarification and Incorporate Response into Proposal

MSIFN reserves the right to seek clarification and supplementary information from Proponents after the Proposal Submission Deadline. Any response received by MSIFN from a Proponent shall, if accepted by MSIFN, form an integral part of that Proponent's Proposal.

5.4.6 RFP Incorporated into Proposal

All of the provisions of this RFP are deemed to be accepted by each Proponent and incorporated into each Proponent's Proposal.

5.4.7 Proposal Property of MSIFN

Except where expressly set out to the contrary in this RFP, the Proposal and any accompanying documentation submitted by a Proponent shall become the property of MSIFN and shall not be returned.

5.5 Execution Of Agreement

5.5.1 Selection of Proponent

MSIFN anticipates that a Proponent will be selected by MSIFN within • days of the Proposal Submission Deadline. Notice of selection by MSIFN to the selected Proponent will be in writing. The selected Proponent shall execute the Agreement presented to the successful Proponent and satisfy any other applicable condition of this RFP within • days of notice of selection.

5.5.2 Failure to Enter Agreement

In addition to MSIFN's other remedies, if a selected Proponent fails to execute the Agreement or satisfy any other applicable condition within • days of notice of selection, MSIFN may, in its sole and absolute discretion and without incurring any liability, withdraw the selection of that Proponent.

5.5.3 Notification to Other Proponents of Award and Debriefing

Once the Agreement is executed between the Supplier and MSIFN, the other Proponents will be notified by MSIFN in writing of the award of the Agreement to the Supplier. If requested in writing by an unsuccessful Proponent, MSIFN will provide a debriefing of MSIFN's evaluation of that Proponent's Proposal in accordance with the terms of MSIFN's Procurement Policies.

5.6 Prohibited Communications & Confidential Information

5.6.1 Prohibited Proponent Communications

Any attempt on the part of any Proponent or any of its employees, agents, contractors or representatives to contact any person other than the MSIFN Contact with respect to this RFP, will be grounds for disqualification. For clarification and without limiting the generality of the foregoing, no attempt will be made to contact any member of MSIFN's Evaluation Committee, elected officials or any expert or other advisor to MSIFN, or any staff of MSIFN. In such event, and without any liability, MSIFN may, in its sole and absolute discretion, in addition to any other remedies available at law, disqualify the Proposal submitted by the Proponent.

5.6.2 Proponent Not to Communicate with Media

A Proponent may not at any time directly or indirectly communicate with the media in relation to this RFP or any contract awarded pursuant to this RFP without first obtaining the written permission of the MSIFN Contact.

5.6.3 Confidential Information of MSIFN

All information provided by or obtained from MSIFN in any form in connection with this RFP either before or after the issuance of this RFP:

- (i) is the sole property of MSIFN and must be treated as confidential;
- (ii) is not to be used for any purpose other than replying to this RFP and the performance of any subsequent Agreement;
- (iii) must not be disclosed without prior written authorization from MSIFN; and
- (iv) shall be returned by the Proponents to MSIFN immediately upon the request of MSIFN.

5.6.4 Personal Information Protection and Electronic Documents Act

Proponents should not submit as part of their Proposal any information related to the qualifications or experience of persons who will be assigned to provide the Services unless specifically requested. Any personal information as defined in the *Personal Information Protection and Electronic Documents Act, S.C. 2005, c.5* that is requested from a Proponent by MSIFN shall only be used to select the qualified individuals to undertake the Services and to confirm that the work performed is consistent with such qualifications. MSIFN shall maintain the information for a period of seven (7) years from the time of collection.

5.7 Rights of MSIFN

In addition to any other express rights or any other rights which may be implied in the circumstances, MSIFN reserves the right to:

- (i) make public the names of any or all Proponents;
- (ii) request written clarification or the submission of supplementary written information from any Proponent;
- (iii) waive formalities and accept Proposals which substantially comply with the requirements of this RFP;
- (iv) verify with any Proponent or with a third party any information set out in a Proposal;
- (v) check references other than those provided by any Proponent;

- (vi) disqualify any Proponent whose Proposal contains misrepresentations or any other inaccurate or misleading information;
- (vii) disqualify any Proponent or the Proposal of any Proponent who has engaged in conduct prohibited by this RFP;
- (viii) make changes, including substantial changes, to this RFP provided that those changes are issued by way of addenda in the manner set out in this RFP;
- (ix) accept or reject a Proposal if only one Proposal is submitted;
- (x) select any Proponent other than the Proponent whose Proposal reflects the lowest cost to MSIFN;
- (xi) cancel this RFP process at any stage;
- (xii) cancel this RFP process at any stage and issue a new RFP for the same or similar services;
- (xiii) accept any Proposal in whole or in part, provided that doing so complies with MSIFN's Procurement Policies and other applicable laws;
- (xiv) discuss with any Proponent different or additional terms to those contemplated in this RFP or in any Proponent's Proposal;
- (xv) reject any or all Proposals in its absolute discretion;

and MSIFN shall not be liable for any expenses, costs, losses or any direct or indirect damages incurred or suffered by any Proponent or any third party resulting from MSIFN exercising any of its express rights under this RFP or exercising any rights which may be implied in the circumstances. In addition, all Proponents shall bear their own costs and expenses incurred related to the preparation or presentation of their Proposal and MSIFN shall not be liable to pay such costs and expenses or to reimburse or to compensate any Proponent under any circumstances.

By submitting a Proposal, the Proponent authorizes the collection by MSIFN of the information set out under (iv) and (v) in the manner contemplated in those subparagraphs.

5.8 Governing Law of RFP Process

This RFP process shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein.

APPENDIX A

FORM OF OFFER

TO: MISSISSAUGAS OF SCUGOG ISLAND FIRST NATION

RE: IN THE MATTER OF our Proposal dated ●, 2023 to which this Form of Offer forms an integral part (the “Proposal”) prepared by ● (the “Proponent”), and submitted in response to a request for proposals issued by MSIFN dated ●, as amended, regarding the supply of ●. I am duly authorized by the Proponent to execute this Form of Offer on behalf of the Proponent. I solemnly declare and promise as follows:

Proposal Validity and Security

All statements, specifications, data, confirmations, and information that have been set out in the Proposal are complete and accurate in all material respects.

I consent to the disclosure, on a confidential basis, of the Proposal by MSIFN to the Evaluation Committee and MSIFN’s other advisors retained for the purpose of evaluating or participating in the evaluation of the Proposal.

I have received and reviewed the RFP, together with any and all addenda thereto.

References

I have included the number and type of references required by the RFP and consent to having MSIFN perform checks with those references and with any other relevant references, which MSIFN, within its sole discretion, may deem appropriate.

Conflict of Interest

I hereby confirm that there is not now, nor was there in the past any actual or potential Conflict of Interest relating to the preparation of our Proposal nor do I foresee any actual or potential Conflict of Interest in performing the contractual obligations contemplated in the RFP. “**Conflict of Interest**” includes, but is not limited to, any situation or circumstance where:

- (a) in relation to this RFP process, the Proponent has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including, but not limited to (i) having or having access to information in the preparation of its Proposal that is confidential to MSIFN and not available to other respondents; (ii) communicating with any person with a view to influencing preferred treatment in this RFP process; or (iii) engaging in conduct that compromises or could reasonably be seen to compromise the integrity of the open and competitive RFP process and render that process non-competitive and unfair; or,
- (b) in relation to the performance of its contractual obligations in an MSIFN agreement, the Proponent’s other commitments, relationships or financial interests (i) could or could reasonably be seen to exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgement; or (ii) could or could reasonably be seen

to compromise, impair or be incompatible with the effective performance of its contractual obligations;

Proof of Insurance

By signing this Form of Offer, I acknowledge the Proponent's willingness, if selected, to provide insurance on the terms immediately set out below, which will be paid for by the Proponent, as follows:

Comprehensive General Liability Insurance, which coverage shall include premises and all operations liability to be performed by the Proponent, his/her employees, and/or agents. This insurance coverage shall be subject to limits of not less than Two Million Dollars (\$2 M) inclusive per occurrence for bodily injury, death and damage to property including loss of use thereof for any one occurrence.

Standard Automobile and Non-Owned Automobile Liability Insurance (where applicable), which shall protect against all liability arising out of the use of owned or leased vehicles, used by the Proponent, its employees or agents. The limits of liability for both owned and non-owned vehicles shall not be less than One Million Dollars (\$1 M) per occurrence.

Professional Liability Insurance in the amount of not less than Two Million Dollars (\$2 M) per occurrence.

Execution of Agreement

I understand that in the event that our Proposal is selected by MSIFN, I agree to sign the Agreement presented to the Proponent by MSIFN.

Signature of Witness:

Signature of Proponent Representative:

Name of Witness:

Name and Title:

Date of Signature:

I have authority to bind the Proponent